

[*41] but, as a general rule, they are *not altogether fit persons for the office, in consequence of the probability of a conflict between their interest and their duty (a).¹

18. **Relatives.**—Sir John Romilly, M.R., considered it also objectionable to appoint any *relative* a trustee, from the frequency of breaches of trust committed by trustees at the instance of *cestuis que trust* nearly connected with them (b).

However, there is no positive legal objection to appointing either a *cestui que trust* or a relative, and indeed it is not always easy to find a trustee who is neither a *cestui que trust* nor a relative, and this the Court itself has experienced; for, notwithstanding its repugnance to such a course, it has been obliged occasionally, to appoint a relative, who is also a *cestui que trust*, to be a trustee (c). In one case the Court, in appointing two new trustees, allowed the *husband* of a *cestui que trust* to be one of them upon his undertaking, that, if he became sole trustee, he would immediately take steps for the appointment of a co-trustee (d),² [and in another case the appointment was made with a direction, that in case the husband should become sole trustee, a new trustee should forthwith be appointed (e). But in a recent case in Lunacy, where three new trustees were appointed, the Court allowed the husband of the tenant for life to be one of them, without requiring any such undertaking (f);] and in other cases the *husbands* of *cestuis que trust* in remainder have been appointed trustees (g); [but the late Master of the Rolls refused, in a recent case, to appoint a man a trustee of his own marriage settlement, though all the persons interested assented to the

(a) *Foster v. Abraham*, 17 L. R. Eq. 351.

(b) *Wilding v. Bolder*, 21 Beav. 222.

(c) *Ex parte Clutton*, 17 Jurist, 988; *Ex parte Conybeare's settlement*, 1 W. R. 458; *Re Clissold*, 10 L. T. N. S. 642; and see *Re Lancaster Charities*, 9 W. R. 192; *Passingham v. Sherborn*, 9 Beav. 424; *Barnes v. Addy*, 9 L. R. Ch. App. 244.

(d) *Re Hattatt's Trusts*, 18 W. R. 416; 21 L. T. N. S. 781 [and see *Re Burgess' Trust*, W. N. 1877, p. 87. *Re Lightbody's Trusts*, 33 W. R. 452].

[(e) *Re Parrott*, W. N. 1881, p. 158.]

[(f) *Re Jesson*, 7 Aug. 1878, M. S.]

(g) *Re Davis' Trusts*, 12 L. R. Eq. 214; [*Re Sarah Knight's Will*, 20 Ch. D. 82.]

¹ *Craig v. Hone*, 2 Edw. Ch. 554; *Perry on Trusts*, § 59.

² *Porter v. Bank*, 19 Vt. 410; *Dean v. Lanford*, 9 Rich. Eq. 423.